

**BEFORE THE
FEDERAL MARITIME COMMISSION
Washington, D.C.**

DOCKET NO. 25-24

**SOUTHERN INTERNATIONAL CO., LTD.
COMPLAINANT,**

v.

**DAYNAMEZ GROUP OF COMPANIES LLC
RESPONDENT.**

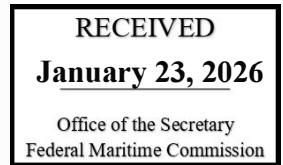
VERIFIED SECOND AMENDED COMPLAINT

I. INTRODUCTION

1. This is an action for reparations and civil penalties brought by Complainant, Southern International Co., Ltd. ("SIC"), against Respondent, Daynamez Group of Companies LLC ("Daynamez"), for repeated and systemic violations of the Shipping Act of 1984, as amended, 46 U.S.C. § 40101, et seq. (the "Shipping Act").

2. Contrary to Respondent's previous assertions that this matter is a mere private contractual dispute, the gravamen of this Complaint concerns Respondent's implementation of unjust and unreasonable practices while acting as a common carrier, which directly disrupted the flow of international ocean commerce at United States ports.

3. Respondent exploited the inherent trust in international logistics and the complexities of ocean freight payment systems to orchestrate a scheme of unjust



enrichment. By systematically withholding freight payments while collecting them under the guise of carrier services, Respondent prioritized its own illicit financial gain over its statutory duties under the Shipping Act, thereby causing substantial disruptions to the U.S. supply chain.

4. At all times relevant hereto, Respondent “held itself out” to the public and to SIC as a non-vessel-operating common carrier (“NVOCC”) providing door-to-door international ocean transportation services. Respondent directly solicited business by offering “Net/Net” freight rates, assumed responsibility for the payment of underlying ocean common carriers, and controlled the manifestation process for shipments destined for the United States.

5. Between August and October 2024, SIC fully performed its financial obligations by remitting a total of \$2,615,650.87 to Respondent for the ocean freight and related charges of hundreds of shipments. However, instead of applying these funds to the respective ocean common carriers to ensure the release of the cargo, Respondent misappropriated the funds for its own purposes.

6. Respondent’s failure to pay the underlying carriers, despite having received full payment from SIC, resulted in the unlawful lien and detention of at least 558 containers at various U.S. ports, including but not limited to Los Angeles, Long Beach, Savannah, and New York. This conduct constitutes an “unjust and unreasonable practice relating to receiving, handling, storing, or delivering property” in violation of 46 U.S.C. § 41102(c).

7. Furthermore, by providing such transportation services without a valid license from the Federal Maritime Commission (“FMC”) and without maintaining a bond or other evidence of financial responsibility, Respondent has operated as an unregistered

Ocean Transportation Intermediary (“OTI”) in willful violation of 46 U.S.C. §§ 40901 and 40902.

8. SIC brings this Verified Second Amended Complaint to cure the technical deficiencies previously noted by the Administrative Law Judge, to establish the Commission’s subject-matter jurisdiction over Respondent’s carrier-like conduct, and to seek full restitution for the substantial financial injuries caused by Respondent’s unlawful acts.

II. COMPLAINANT

9. Complainant SOUTHERN INTERNATIONAL CO., LTD. (“SIC”) is a limited liability company duly organized and existing under the laws of Vietnam, with its principal place of business at 64 Truong Dinh, Xuan Hoa Ward, Ho Chi Minh City, Vietnam. SIC is a licensed Ocean Transportation Intermediary (“OTI”) and is registered with the Federal Maritime Commission (“FMC”) under Organization Number 033811. At all times relevant to this Complaint, SIC acted as a “shipper” as defined by 46 U.S.C. § 40102(23).

III. RESPONDENT

10. Respondent DAYNAMEZ GROUP OF COMPANIES LLC (“Daynamez”) is, upon information and belief, a limited liability company organized and existing under the laws of the Commonwealth of Virginia, with its principal place of business located at 4000 Legato Road, Suite 1100, Fairfax, VA 22033.

11. Although Respondent has previously characterized itself as a mere “sales agent,” it acted as a “common carrier” and specifically a “non-vessel-operating common carrier” (“NVOCC”) as those terms are defined in 46 U.S.C. §§ 40102(7) and 40102(17). Respondent provided transportation between the United States and a foreign country for

compensation and, in the ordinary course of its business, advertised and held itself out to provide such transportation through its own marketing materials and direct solicitations.

12. Specifically, Respondent's official marketing materials state: **"We provide domestic and international shipping and forwarding services from all major USA/Canada main ports... We are NVOCC having our own inventories of dry container..."** (See Exhibit B - Page 2 and page 5).

13. Furthermore, in its course of dealing with SIC, Respondent consistently provided "Net/Net" freight rates and assumed the classic risks and responsibilities of an NVOCC, including controlling the shipment manifest process and accepting payment as the primary contracting party for ocean carriage.

14. Upon information and belief, Respondent has performed these NVOCC services for shipments destined for the United States without a valid OTI license issued by the FMC and without providing evidence of financial responsibility, in direct violation of 46 U.S.C. §§ 40901 and 40902.

15. While Respondent utilized various "booking partners" and entities, including but not limited to Cargo Login LLC, Mahasagar Forwarders, Super Cargo Service, and Kargosmart Vietnam, these entities acted solely under the exclusive direction and control of Respondent. Respondent exercised total authority over the financial and operational aspects of the shipments, including the collection of all freight funds from SIC and the subsequent instruction for cargo release or detention.

IV. JURISDICTION

16. The Federal Maritime Commission ("Commission") has subject-matter jurisdiction over this action and personal jurisdiction over Respondent Daynamez pursuant to the Shipping Act, 46 U.S.C. § 40101, et seq. Specifically, the Commission has

jurisdiction over this dispute as it involves violations of 46 U.S.C. §§ 40901, 40902, and 41102(c) by an entity acting as a non-vessel-operating common carrier (“NVOCC”) in United States ocean-borne commerce.

17. Respondent Daynamez is a “common carrier” and specifically an “NVOCC” within the meaning of 46 U.S.C. §§ 40102(7) and 40102(17) because it held itself out to the public to provide ocean transportation between the United States and a foreign country for compensation and, in the ordinary course of its business, assumed responsibility for such transportation. This status is evidenced by Respondent’s specific representations in the following communications:

- Respondent’s Email 10:36 PM October 23, 2023: *“We do have a very strong relationship with a few good shipping lines such as Maersk and Hapag and will offer you the best Rates and check that option too. I will also send you our enquires for our project cargo from Vietnam to various places.”* (See **Exhibit C – Page 2**).
- Respondent’s Email 11:04 PM October 24, 2023: *“I must offer you Net/Net and you mark up the profit and share it with each other on 50/50 otherwise in this tough market of todays competition both will not make it unless we both offer Net/Net and share our profit period”* (See **Exhibit C - Page 8**).
- Respondent’s Email 12:01 PM November 29, 2023: *“If you confirm than will send you shipping schedule than you will know the cut of date and sailing and accordingly will send you whom to contact in Vietnam”* (See **Exhibit C – Page 15**).
- Complainant’s Email 1:36 PM February 15, 2024: *“If you have any rates from/to Vietnam that you think are competitive, please let me know, and I will boost our sales team to sell them.”* (See **Exhibit C – Page 21**).
- Respondent’s Email 11:44 PM February 26, 2024: *“...let me know to file this rates with service provider...”* (See **Exhibit C – Page 31**).

18. Evidence of “Holding Out”: Respondent’s status as a common carrier is established by its public solicitations and representations on its official website and marketing materials, Respondent explicitly declares: *“We provide domestic and*

international shipping and forwarding services from all major USA/Canada main ports... We are NVOCC having our own inventories of dry container..." (See Exhibit B - Page 5). By publicly identifying as an NVOCC and offering services from "all major USA main ports," Respondent induced Complainant and other shippers to rely on its status as a carrier.

- Respondent's Email 10:36 PM October 23, 2023: *"We do have a very strong relationship with a few good shipping lines such as Maersk and Hapag and will offer you the best Rates and check that option too. I will also send you our enquires for our project cargo from Vietnam to various places."* (See Exhibit C – Page 1)
- Respondent's WhatsApp message: 11:01 AM May 22, 2024: *"Am sure with this new agent introduced to me by Rotterdam will meet all our requirement since they will have big capacity and plus have exclusively working with one line and zim and some other main liner supported by Rotterdam..."* (See Exhibit D - Page 3).

19. Evidence of Carrier Operations (Net/Net Pricing): Further evidence of Respondent's carrier status, and its distinction from a mere agent, is its consistent use of "Net/Net" pricing. In multiple electronic communications with Complainant, Respondent provided "Net/Net offers". Unlike a sales agent who earns a disclosed commission, Respondent acted as a principal by purchasing space from underlying carriers at one rate and reselling it to Complainant at a marked-up "Net/Net" rate, thereby assuming the financial risk of the voyage.

- Respondent's Email 12:01 PM November 29, 2023 (See Exhibit C - Page 14-15); Email 11:45 PM February 15, 2024 (See Exhibit C - Page 24); Email 10:32 AM February 23, 2024 (See Exhibit C - Page 33): The contents of these emails demonstrate that Respondent quoted its freight rates to Complainant.
- Respondent's Email 10:32 AM February 23, 2024: *"Since we are offering 2980/USD ..." "This is special and very special rates from WHI providing if you can win this bidding and such rates not existed in the market and current rates is very high like 5900/5850/ OOCL and ONE line almost 6000 and MSC like 6500/USD"* (See Exhibit C – Page 33).

20. Booking Control: Respondent directly sent the booking confirmation to Complainant via email kamali@daynamez.com.

- Respondent's Email 12:46 AM April 10, 2024: Respondent sent the booking confirmation No. 2302145710 (**See Exhibit C – Page 36**) regarding specific details of the shipment under Bill of Lading No. 2302145710, consisting of 01 x 40HC container for shipper MINH VAN INTERNATIONAL TRANSPORT LOGISTICS JSC.
- Respondent's Email 12:42 AM April 10, 2024: Respondent sent the booking confirmation No. 2302146960 (**See Exhibit C – Page 37**) regarding specific details of the shipment under Bill of Lading No. 2302146960, consisting of 03 x 40HC containers for shipper SHANGHAI LEAGUE SHIPPING CO., LTD.
- Respondent's Email 12:34 AM April 10, 2024: Respondent sent the booking confirmation No. 2302150990 (**See Exhibit C – Page 38**) regarding specific details of the shipment under Bill of Lading No. 2302150990, consisting of 01 x 40HC container for shipper OLIVIN LOGISTICS CO., LTD.
- Respondent's Email 12:19 AM April 09, 2024: Respondent sent the booking confirmation No. 238200893 and 238201182 (**See Exhibit C – Page 39 -40**) regarding specific details of the shipments under Bill of Lading Nos. 238200893 and 238201182, with a total quantity of 09 x 40HC containers for shipper PAM CARGO INTERNATIONAL CO., LTD.
- Respondent's Email 10:29 AM March 19, 2024: Respondent sent the booking confirmation No. SGN2092103-1 (**See Exhibit C – Page 41**) regarding specific details of the shipment under Bill of Lading No. UNI24040111, consisting of 04 x 40HC containers for shipper 1ST SHIPPING CO., LTD.

21. Control of Bills of Lading Issuance: Respondent's status as a common carrier is further evidenced by its direct operational interference in the issuance of transport documents. Respondent acted as the principal contracting party for the ocean transportation, assuming the liability of a carrier. In electronic communications to SIC, Respondent explicitly stated that it would instruct and direct its partners, specifically Super Cargo Service and Kargosmart Vietnam, to issue House Bills of Lading ("HBL") for the subject shipments. Such instructions to issue HBLs are a quintessential function of an

NVOCC acting as a principal carrier and further establish Daynamez's "holding out" to be responsible for the transportation.

- In the message thread between Complainant and Respondent regarding Respondent's use of a new partner in Vietnam to issue House Bills of Lading (HBLs) for Complainant's shipments, Respondent instructed Complainant via a message stating: *"We have two shipments which cannot put Daynamez as the consignee on MBL with the below instructure MBL:..."* – Kamali's WhatsApp Message 12:02 AM July 10, 2024 (See Exhibit D – Page 4-7), regarding shipment No. HCM24070009, consisting of 01 x 40HC container.
- When Complainant requested Respondent to verify the draft Bill of Lading: *"Pls help to find draft bl ass att file, check and send us..."* – Respondent's Email 4:50 AM January 26, 2024 (See Exhibit C – Page 43). Respondent replied: *"Yes. The attached documents is correct."* – Complainant's Email 10:30 PM January 26, 2024 (See Exhibit C – Page 43).
- When Complainant sent an email requesting Respondent to confirm the accuracy of the Draft Master Bill of Lading (MBL) sent by Complainant: *"Please help to find draft BL for this shipment Kindly check and flow to release Mbl + AN"* – Complainant's Email 11:14 AM April 16, 2024 (See Exhibit C – Page 45). Respondent replied: *"Dear Jenny, Yes. Confirmed..."* – Respondent's Email 11:17 AM April 16, 2024 (See Exhibit C – Page 45).
- When Complainant requested Respondent to revise the Consignee on the MBL back to Respondent, Respondent sent several draft bills of lading to explain the procedure: *"Please help me to revise the consignee on MBL to Daynamez for all of these shipments, which I listed in the attached spreadsheet. All of these shipments are via Sophia Super Cargo now and the consignee on the MBL now is Cargo Login LLC. This small mistake makes Southern really hard in explaining tax reports and transfer money abroad to you."* – Complainant's Email 12:15 PM May 14, 2024 (See Exhibit C – Page 50). Respondent replied: *"Please open this and also some example. I sent you the last one with the cargo log in. Once you open it, call me."* – Respondent's Email 1:21 PM May 14, 2024 (See Exhibit C – Page 51).

22. Receipt of Freight Payment: Respondent directly sent invoices to

Complainant and directly received freight from Complainant.

- Respondent's Email 7:53 AM January 26, 2024: *"Pls find attached our invoices and please send me the swift copy to complete the manifestation process by return"* (See Exhibit C – Page 53). Following this request, Complainant remitted payment for this shipment to Respondent.
- Respondent's Email 10:30 PM January 26, 2024: *"Pls also find our invoices since vessel already sailed and please send me the swift copy to finish"*

Manifestation process to avoid Roll over.” (See Exhibit C – Page 55). Following this request, Complainant remitted payment for this shipment to Respondent.

Upon receipt of these two emails, Complainant made a payment to Respondent in the amount of **\$14,935.00** (Fourteen thousand, nine hundred and thirty-five U.S. Dollars).

23. Control of Cargo Delivery: Respondent directly issued Arrival Notices for Complainant’s shipments.

- Respondent’s Email 2:14 AM October 09, 2024: Respondent sent Arrival Notice “04-18459” (See Exhibit C – Page 57).
- Respondent’s Email: 9:00 AM October 09, 2024: Respondent sent Arrival Notice “04-18675” (See Exhibit C – Page 58).

24. Acting in its capacity as an NVOCC, Respondent provided ocean transport services to SIC during the period from October 2023 through October 2024. Respondent handled a total of 487 shipments (1,015 containers). Of these, Respondent fulfilled its obligations for 246 shipments (457 containers); however, for the remaining 241 shipments (558 containers), Respondent failed to discharge its carrier obligations, despite having received full freight payment.

25. Authenticity and Source of Evidence: Complainant affirms that the documents attached as Exhibit A (Agreement), Exhibit C (Email Correspondence), Exhibit D (WhatsApp messages), Exhibit E (Financial Documents) are bona fide business and electronic records maintained in the ordinary course of Complainant’s business, and Exhibit B (PDF capture of Daynamez’s website) is official website of Respondent. Specifically:

- Regarding PDF capture of Daynamez’s website (Exhibit B): These are PDF capture of Respondent’s official website (www.daynamez.com) taken by SIC on January

19, 2026. These PDF images accurately and faithfully reflect the content Respondent publicly promoted regarding its NVOCC services.

- Regarding Email Correspondence (Exhibit C): These email threads represent direct electronic communications between SIC's email domain (@southern.com.vn) and Mr. Zia Kamali (kamali@daynamez.com)—Respondent's CEO.

- Regarding the WhatsApp messages (Exhibit D): These message threads demonstrate direct electronic communications between Mr. Nam (Complainant's employee, phone number: +84775192912) and Mr. Kamali (Respondent's CEO, phone number: +1 (571) 287-9964).

- Regarding the Financial Documents (Exhibit E): All proofs of payment from Complainant to Respondent are PDF capture of the original documents issued by the Bank.

26. Because Respondent acted as an NVOCC in the transportation of goods to and from United States ports, it is subject to the requirements of the Shipping Act, including the obligation to observe just and reasonable practices and the requirement to maintain a valid license and financial responsibility.

27. Based on Respondent's actual business practices, it can be affirmed that Respondent acted in the capacity of an NVOCC, and its conduct falls entirely within the jurisdiction of the Federal Maritime Commission.

V. FACTUAL ALLEGATIONS

A. Establishment of Carrier Status and Operational Control

28. On or about December 1, 2023, Complainant and Respondent entered into an Agency Agreement No. SIC/DNM-011224 (the "Agreement"), establishing a framework for international ocean freight transportation (**See Exhibit A**)

29. Regarding the profit sharing between Complainant and Respondent, the

parties agreed to an allocation of pre-tax profits whereby Complainant is entitled to 60% and Respondent is entitled to 40%. This is confirmed by Respondent in Kamali's Email 11:42 AM May 25, 2024: "*It is confirmed from my side 40% Daynamez and 60% Southern it is OK.*" (See Exhibit C – Page 59).

30. Between late 2023 and October 2024, Respondent handled hundreds of shipments for Complainant. In each instance, Respondent acted as a principal, purchasing space from underlying carriers and reselling it to Complainant's customers, rather than as a mere agent earning a commission.

31. Throughout the course of performance, Respondent functioned as NVOCC by providing 'Net/Net' freight quotations, handling bookings, designating Vietnamese Agent to issue shipping instructions, designating partners to issue bills of lading, collecting freight, and controlling Arrival Notices. Respondent required Complainant to remit all ocean freight and profit shares to Respondent, with the express understanding that Respondent would pay the underlying carriers to ensure the release of the cargo.

32. Respondent performed service activities for Complainant's shipments in the capacity of an NVOCC, through the following specific steps: (1) Respondent quoted freight rates to Complainant or agreed to rates proposed by Complainant; (2) Upon agreement on the freight rates, Respondent directly designated its partners in Vietnam to issue the Booking Confirmation and transmit it to Complainant; (3) Respondent directly instructed Complainant to contact its partners in Vietnam to provide shipment details for the purpose of issuing the Bills of Lading; (4) Respondent issued and/or confirmed invoices (debit notes) and submitted payment requests to Complainant; and (5) Respondent directly sent Arrival Notices to the Consignees in the United States.

B. SIC'S Full Performance of Financial Obligations

33. Complainant fully and timely performed all its financial obligations. Relying on Respondent's status as a reliable carrier, Complainant executed over 39 separate wire transfers in 11 months span with the total amount of \$4,337,835.23 to ensure that all goods would be processed and released at U.S. ports. Of these, there were 13 wire transfers specifically for the 558 shipments, totaling \$2,615,650.87 (**See Exhibit E**).

34. The following payments, among others, were specifically remitted for the shipments which were detained (**as detailed in Exhibit E**):

Payment Date	Bank Slip Number	Amount (USD)	Purpose
August 15, 2024	SENDQ10-4161	142,263.00	Ocean Freight for U.S.-bound shipments
August 20, 2024	SENDQ10-4167	179,459.80	Ocean Freight for U.S.-bound shipments
August 23, 2024	SENDQ10-4172	164,181.60	Ocean Freight for U.S.-bound shipments
August 30, 2024	SENDQ10-4177	363,092.40	Ocean Freight for U.S.-bound shipments
September 04, 2024	SENDQ10-4180	308,167.20	Ocean Freight for U.S.-bound shipments
September 05, 2024	SENDQ10-4181	271,220.40	Ocean Freight for U.S.-bound shipments
September 10, 2024	SENDQ10-4183	183,308.40	Ocean Freight for U.S.-bound shipments
September 17, 2024	SENDQ10-4184	126,027.00	Ocean Freight for U.S.-bound shipments
September 25, 2024	SENDQ10-4190	142,678.80	Ocean Freight for U.S.-bound shipments
September 30, 2024	SENDQ10-4194	182,525.27	Ocean Freight for U.S.-bound shipments
October 09, 2024	SENDQ10-4201	352,737.00	Ocean Freight for U.S.-bound shipments
October 09, 2024	VVPB2024100900 00011538 VPB20241009000 0011642 VPB20241009000 0011691	149,990.00	Ocean Freight for U.S.-bound shipments

	VPB20241009000 0011739		
October 14, 2024	VPB20241014000 0036230 VPB20241014000 0036399	50,000.00	Ocean Freight for U.S.- bound shipments
TOTAL		2,615,650.87	

C. Respondent's Unjust Practices and Deceptive Conduct

35. Respondent, acting in its capacity as an NVOCC, performed transportation services for a total of 487 shipments (1,015 containers). Of these, regarding 241 shipments (558 containers), despite having received full freight payments from Complainant, Respondent failed to discharge its responsibility to remit freight charges to the underlying carriers, thereby causing catastrophic consequences for Complainant and Complainant's customers and brand reputation. Furthermore, SIC is currently facing lawsuits from its customers.

36. Respondent's conduct represents a consistent pattern of unfair and exploitative practices. This was not a mere operational oversight but a calculated business decision to utilize Complainant's funds, intended for the release of 558 containers. This pattern of conduct reflects a fundamental failure to establish or observe just and reasonable practices in the handling of property bound for United States commerce.

37. The deceptive nature of Respondent's conduct is most evident in the events of October 2024. In early October 2024, as numerous shipments arrived at U.S. ports with no indication of release, Complainant faced immense pressure from its customers. Under these exigent circumstances, and despite possessing full knowledge that it was unable to secure the release of the arrived cargo, Respondent pressured Complainant for making a payment of \$352,737.00 to Respondent and \$199,990.00 to Respondent's partners in Vietnam on Respondent's behalf.

- Respondent's Email 11:08 AM October 09, 2024: "*Dear Nam, Good day. Pls push your accounting department the following: 1- Please send me receipt paid to Sophia in USD amount. 2- Also to daynamez.*" (Daynamez pressured SIC for a final payment of \$352,737.00) (See **Exhibit C - Page 61**).
- Respondent's Email 10:40 AM October 08, 2024: "*Dear Nam, As per our phone conversation am requesting you to pay 150000/USD to supercargo today to close their account with us and please adjust this amount for our next payment.*" (Daynamez further directed SIC to pay an additional \$149,990.00 to a third party, Super Cargo, to "save the cargos") (See **Exhibit C - Page 63**).
- Respondent's Email 11:01 AM October 14, 2024: "*Dear Nam, Pls go ahead deposit 50000/USD to kargosmart and send me receipt by return.*" (Daynamez directed SIC to remit \$50,000.00 to Kargosmart Vietnam) (See **Exhibit C - Page 68**).

38. However, on October 15, 2024, Respondent abruptly declared it would cease all payment operations. Respondent's act of soliciting and accepting significant fund from SIC on October 9, while knowing it would not or could not pay the underlying carriers, constitutes a knowing and willful misrepresentation, dishonest conduct, and a fraudulent practice in the shipping industry. In Respondent's Email 10:16 PM October 15, 2024: Respondent declared that it no longer possessed the financial capacity to release the current shipments and suggested that Complainant "*should pay whatever amount for those shipments reaching to avoid any further DEM*" (See **Exhibit C – Pages 70-71**).

D. Direct Impact on United States Commerce

39. As a direct result of Respondent's misappropriation of freight funds, at least 558 containers belonging to Complainant's customers have been unlawfully detained by underlying carriers at various United States ports due to non-payment of ocean freight.

40. The detention of the 558 containers did not constitute an isolated contractual breach but was the result of a systemic and continuous practice by Respondent over a long time period.

41. This detention has paralyzed supply chains, incurred massive demurrage and

detention charges, and directly violated the requirement to observe just and reasonable practices in the delivery of property in U.S. commerce under 46 U.S.C. § 41102(c).

VI. LEGAL VIOLATIONS

COUNT I: VIOLATIONS OF 46 U.S.C. §§ 40901 AND 40902

(Unlicensed OTI Operations and Failure to Maintain Financial Responsibility)

42. Complainant re-alleges and incorporates by reference the STATEMENT AND ALLEGATIONS set forth in paragraphs 17 through 41 herein.

43. Under 46 U.S.C. § 40901(a), no person may advertise, hold oneself out, or act as an ocean transportation intermediary (“OTI”) unless that person holds a license issued by the Federal Maritime Commission. Furthermore, 46 U.S.C. § 40902 requires that every OTI furnish a bond, proof of insurance, or other surety as the Commission requires to ensure financial responsibility.

44. As detailed in Section IV (Jurisdiction) and Section V (Factual Allegations), Respondent acted as an OTI, and specifically as a non-vessel-operating common carrier (“NVOCC”), in the waterborne foreign commerce of the United States.

45. Respondent willfully violated 46 U.S.C. § 40901 by holding itself out to the public and to SIC as an NVOCC without the required license. As evidenced in **Exhibit B (Page 2 and page 5)**, Respondent publicly declared on its official website: “*We provide domestic and international shipping and forwarding services from all major USA/Canada main ports... We are NVOCC.*” By providing “Net/Net” freight rates and assuming responsibility for the transportation of 1,015 containers of Complainant’s cargo destined for U.S. ports, Respondent performed the functions of an NVOCC for compensation.

46. Upon information and belief, at all times relevant to this action, Respondent did not hold a valid OTI license issued by the Commission, nor was it registered as a foreign-based NVOCC.

47. Respondent further violated 46 U.S.C. § 40902 by failing to maintain a bond, proof of insurance, or other surety to establish financial responsibility for its OTI activities. Respondent's failure to provide such financial security has directly contributed to the current crisis where SIC's cargo is being held by underlying carriers without a clear mechanism for financial recourse through a bond claim.

48. Respondent's operation as an unlicensed and unbonded OTI in U.S. commerce is a direct violation of the Shipping Act. These violations have caused, and continue to cause, critical financial injury to SIC in the amount of \$2,615,650.87, and the resulting costs associated with the demurrage and detention of 558 containers.

COUNT II: VIOLATION OF 46 U.S.C. § 41102(c)

(Unjust and Unreasonable Practices Relating to the Delivery of Property)

49. Complainant re-alleges and incorporates by reference the statement and allegations set forth in paragraphs 17 through 41 herein.

50. Pursuant to 46 U.S.C. § 41102(c), a common carrier or ocean transportation intermediary ("OTI") is prohibited from failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.

51. At all times relevant to this Complaint, Respondent, acting in its capacity as an NVOCC, had a statutory and regulatory obligation to observe just and reasonable practices to ensure the orderly and timely delivery of cargo to the ultimate consignees at United States ports.

52. Respondent willfully violated 46 U.S.C. § 41102(c) by establishing and enforcing an unjust and unreasonable practice of soliciting, demanding, and receiving full ocean freight payments from SIC—totaling \$2,615,650.87, while intentionally withholding those specific funds from the underlying carriers.

53. The Respondent's conduct in misappropriating funds across 241 separate shipments (558 containers) constitutes a "practice" within the meaning of 46 U.S.C. § 41102(c). This was a customary way of doing business during the relevant period, directly causing the breakdown of delivery services at U.S. marine terminals.

54. Respondent's practice of misappropriating freight funds has directly caused the underlying carriers to exercise maritime liens and refuse to release at least 558 containers situated at various United States ports. This conduct has effectively obstructed the delivery of property and caused a massive disruption to the supply chain within the United States.

55. Respondent's conduct is further rendered unreasonable because it continued to demand urgent payments from SIC as late as October 9, 2024, despite Respondent's knowledge that it would not apply those funds toward the release of the cargo. Such a practice of collecting freight payments under false pretenses, knowing that the cargo would consequently be detained at U.S. terminals, is inherently unjust and violates the standards of the shipping industry.

56. By reason of the foregoing, Respondent has violated 46 U.S.C. § 41102(c) and is liable to Complainant for reparations in an amount to be proven at adjudication, but no less than \$2,615,650.87, plus interest, attorney's fees, and any other costs associated with the detention of the cargo.

VII. CAUSATION AND INJURY TO COMPLAINANT

57. As a direct and proximate result of Respondent Daynamez's violations of the Shipping Act, specifically 46 U.S.C. §§ 40901, 40902, and 41102(c), Complainant has suffered significant and actual financial injuries.

58. These injuries include, but are not limited to, the loss of \$2,615,650.87 in ocean freight remitted to Respondent, which Respondent failed to pay to the underlying carriers. Additionally, Complainant has incurred, and continues to incur, consequential damages including irreparable damage to its commercial reputation, and the loss of long-standing customer relationships. These consequential damages are a direct result of Respondent's unreasonable practices.

VIII. REPARATIONS AND PRAYER FOR RELIEF

WHEREFORE, Complainant SOUTHERN INTERNATIONAL CO., LTD. respectfully requests that the Commission:

1. Find that Respondent DAYNAMEZ GROUP OF COMPANIES LLC has violated the Shipping Act, 46 U.S.C. §§ 40901, 40902, and 41102(c);
2. Order Respondent to pay SIC reparations for the actual injuries sustained in the sum of \$2,615,650.87, plus any additional consequential damages, including demurrage and detention costs;
3. Order Respondent to pay SIC interest on the reparations amount, calculated in accordance with 46 U.S.C. § 41305 and 46 C.F.R. § 502.65;
4. Order Respondent to pay SIC's reasonable attorney's fees and litigation costs incurred in this proceeding as the prevailing party pursuant to 46 U.S.C. § 41305(e);

5. Order Respondent to cease and desist from further violations of the Shipping Act and to implement lawful and reasonable practices regarding the handling of freight funds and delivery of property;
6. Order the revocation or suspension of any OTI privileges or licenses held by Respondent or its related entities for willful violations of the Shipping Act; and
7. Grant such other and further relief as the Commission deems just and proper.

IX. REQUEST FOR ORAL HEARING

Complainant is not requesting for an oral hearing in this matter and submits this complaint for adjudication on the written records

Respectfully submitted,



Nguyen Tien Phuong
Director
Southern International Company Limited
64 Truong Dinh, Xuan Hoa Ward,
Ho Chi Minh City, Vietnam.
Email: southern@southern.com.vn;
nam@southern.com.vn
Phone: +84 775192912

Date: January 26, 2026

VERIFICATION

I, **Nguyen Tien Phuong**, declare as follows:

1. I am the Director of Southern International Co., Ltd., the Complainant in this proceeding. I am duly authorized to make this verification on behalf of the Complainant.
2. I have read the foregoing Verified Second Amended Complaint and am familiar with the contents thereof.
3. The facts stated in the Verified Second Amended Complaint are true and correct to the best of my knowledge, information, and belief.
4. The Exhibits A, C, D, and E attached to this Complaint are true and correct copies of the original records and electronic data systems of Southern International Co., Ltd.
5. I make this declaration under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on: January 26 2026

At: Ho Chi Minh City, Vietnam



Nguyen Tien Phuong
Director

Southern International Company Limited
64 Truong Dinh, Xuan Hoa Ward,
Ho Chi Minh City, Vietnam
Email: southern@southern.com.vn;
nam@southern.com.vn
Phone: +84 775192912

LIST OF EXHIBITS

Exhibit A: Agreement

Exhibit B: PDF capture of Daynamez's website

Exhibit C: Email Correspondences

Exhibit D: WhatsApp Messages

Exhibit E: Financial Documents



CERTIFICATE OF SERVICE

I certify that on the 26th day of January 2026, a true and correct copy of the foregoing **Verified Second Amended Complaint** was served by electronic mail upon:

Daniel W. Raab, Esq.

9555 North Kendall Drive Suite 210

Miami, Florida 33176

Email: raabdaniel57@gmail.com; kamali@daynamez.com

Respectfully submitted,



Nguyen Tien Phuong

Director

Southern International Co., Ltd.

64 Truong Dinh, Xuan Hoa Ward,

Ho Chi Minh City, Vietnam

Email: southern@southern.com.vn;

nam@southern.com.vn

Phone: +84 775192912

Dated: January 26, 2026